

Before the Federal Maritime Commission

Washington, D.C.

Docket No. 25-15

JOINT STATUS REPORT WITH PROPOSED SCHEDULE

Pursuant to the Initial Order, dated August 5, 2025 (Dkt. No. 6) (“Initial Order”) and applicable rules, Complainant Worldwide Nexus Logistics LLC (“Complainant”) and Respondent Wallenius Wilhelmsen Ocean AS (“Respondent”) (together, the “Parties”) respectfully submit this Joint Status Report With Proposed Schedule.

I. Complainant’s Position

a. Nature of the Case

This case arises under the Shipping Act of 1984, **46 U.S.C. § 41102(c)**. Complainant entrusted Respondent Wallenius Wilhelmsen Ocean (WWO) with cargo for a scheduled RORO shipment to San Antonio, Chile. While under WWO’s custody and control, the cargo was not delivered to its destination.

After Complainant provided notice and supporting documentation, WWO initially acknowledged liability and represented that a settlement proposal was pending internal approval. Despite repeated assurances over several months, WWO failed to finalize any resolution. WWO then abruptly withdrew from settlement discussions without explanation or compensation.

Complainant alleges that these actions constitute a failure to **establish, observe, and enforce just and reasonable regulations and practices relating to the handling and delivery of property**, in violation of § 41102(c). This conduct caused Complainant direct financial loss and disruption of its commercial operations in the Chile trade lane.

b. Jurisdiction and Venue

Jurisdiction is proper before the Federal Maritime Commission pursuant to **46 U.S.C. §§ 41301–41304**.

- **Section 41301** authorizes any person to file a sworn complaint alleging a Shipping Act violation.

- **Section 41302** grants the Commission adjudicatory authority to investigate complaints, make findings, and order relief.
- **Section 41304** directs the Commission to investigate complaints, hold hearings as necessary, and issue appropriate orders.

Together, these provisions establish both Complainant's right to bring this action and the Commission's duty and authority to adjudicate it. Venue lies properly before the Commission.

c. Procedural Posture

- Complainant filed the Complaint, which was accepted by the Commission.
- Respondent filed its Answer, including an objection to jurisdiction.
- A Scheduling Order and Preliminary Conference have been directed by the Presiding Officer.

II. Respondent's Position

Respondent disputes all factual and legal assertions set forth in "Complainant's Position," and reserves all rights and defenses in accordance with its Answer (Dkt. No. 9).

III. Proposed Schedule

The Parties propose the following schedule:

1. **Initial Disclosures:** To be completed on or before September 16, 2025.
2. **Written Discovery Requests:** To be served on or before October 23, 2025.
3. **Expert Reports (if any):** To be completed on or before November 24, 2025.
4. **Rebuttal Expert Reports:** To be completed on or before December 9, 2025.
5. **Expert Discovery:** To be completed on or before January 20, 2026.
6. **All Discovery:** To be completed on or before January 22, 2026.
7. **Dispositive Motions:** To be completed on or before April 22, 2026.
8. **Pre-Hearing Conference:** To be scheduled by the Presiding Officer.
9. **Evidentiary Hearing:** To be scheduled after resolution of dispositive motions.

10. **Initial Decision:** To be issued on or before July 29, 2026.

IV. Preliminary Conference

On September 8, 2025, the Parties met and conferred with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") as required by the Initial Order.

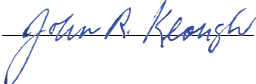
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